



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

MINUTES of the MEETING

Monday, June 5, 2023, at 7:00 PM

The Westhampton Selectboard scheduled a regular meeting to be held on Monday, June 5, 2023, at 7:00 PM at the Town Offices, 1 South Road, and via video-conference.¹

Call to Order

The meeting was called to order at 7:04 PM by Maureen Dempsey, Clerk and Chair Pro Temp.

Present: Scott Johndrow, Maureen Dempsey, Susan Bronstein;

Also Present:

Doug Finn, David Meagher, Ryan Mailloux

By video conference:

*By video conference: Barbara Pelissier, Marilyn Witherell, Mary Lou Burgess,
Sue O'Rourke*

Reorganization

Ms. Dempsey asked for a nomination for Chair.

It was MOVED by Bronstein; SECONDED by Johndrow

To elect Maureen Dempsey as chair.

VOTED 3, 0, 0 (7:05 PM)

It was MOVED by Dempsey, SECONDED by Bronstein

To elect Scott Johndrow as clerk.

VOTED 3, 0, 0 (7:05 PM)

7:00 PM - Pole Hearing – Pole 24/35, located at or near 147-153 Northwest Road

In accordance with Section 22 of Chapter 166 of the General Law, the Selectboard of the Town of Westhampton will hold a public hearing on Monday, June 5, 2022 at 7:00 PM, to consider public comment on a PETITION for JOINT OR IDENTICAL POLE LOCATIONS, as submitted by Albert E. Bessette, on behalf of NStar Electric Company d/b/a Eversource Energy and Verizon New England, Inc. (See separate public hearing notice)

Present for the applicant: David Meagher, Eversource

Ms. Dempsey opened the public hearing at 7:06 PM

Mr. Meagher presented the information relative to the application, which requested

¹ Pursuant to Chapter 53 of the Acts of 2021, the meeting was conducted as a "hybrid" (in-person / remote) meeting. Members of the public could access the meeting in person, or connect via "zoom" teleconferencing via internet – Meeting ID#: 870 4390 0582.

permission to place a new pole in the public way, in order to provide adequate ground clearance of wires above a new proposed driveway about 300' east of Pole 24/35. (refer to application packet for site plan and details).

Highway Superintendent Bill Jablonski noted no objections.

The purpose is to suspend the main wire higher to provide for adequate clearance for a new driveway to be installed.

Mr. Dowling: Any issues with road-side trees? Mr. Meagher: no. Mr. Jablonski concurred.

Action

After review, it was MOVED by Johndrow, SECONDED by Bronstein

To approve the application as presented, and to sign the Order.

VOTED: 3, 0, 0 (7:11 PM)

Interview – Candidates for Treasurer

The board conducted an interview with Mr. Ryan Mailloux, the sole candidate for Treasurer for the Town.

Present: Mr. Mailloux.

Mr. Mailloux offered some information about his background / experience, etc.

- Present on selectboard for five years.
- Previous experience with banks (td bank, etc.)
- Has been working in municipalities for several years.
- Currently works for Shutesbury, Leverett, Warwick; also tax collector in Warwick.
- Has appointed assistant in Shutesbury (very occasional, per-diem)
- Leverett has departmental assistant (second to Town Admin)
- Works mostly remotely.
- Goes into Leverett from 8 AM to 1 PM (solely for collector's duties); Tax collector is a public-facing position, public office hours are required.
- Office hours? Deposits? Use of lock box, deposits on a weekly or semi-weekly basis.

There was discussion relative to in-office hours, the applicability of remote working situations, etc. Mr. Mailloux noted that he would likely start with more "in-office" hours to start, but would likely move towards more remote hours as time moved on.

There was discussion and Q & A in regard to the HR responsibilities endemic with the role of Treasurer.

Ms. Dempsey noted that the board would discuss the appointment under New Business.

Review / Approve Highway Department Employment Agreement

Mr. Finn presented a revised Employment Agreement, noting that he had reviewed the agreement with the Highway Crew, and that they gave verbal approval of same.

After review, it was MOVED by Bronstein; SECONDED by Johndrow

To preliminarily approve the contract, and forward it to the Highway staff for review and approval.

VOTED 3, 0, 0. (7:41 PM)

Review Town Hall Fire and Access Control Proposals

Mr. Finn noted that he had sought out bids and proposals from multiple vendors for access control systems, fire detection and alarm systems, and video security systems for the town Hall. Mr. Finn noted that, based on initial estimates from last year (well under \$30,000), the town was required only to seek out written quotes from at least three vendors. Mr. Finn noted that three vendors had conducted site visits, and received a draft scope of work. However, as of June 6, only one vendor – Hackworth Systems – had submitted a bid.

The board reviewed the written proposals.

After review and discussion, it was MOVED by Johndrow, SECONDED by Bronstein

To accept the bids from Hackworth Systems for the fire detection system for the Town Hall, being the responsive and responsible bidder with the lowest bid.

VOTED: 3, 0, 0, (7:55 PM)

The additional proposals (access control, security cameras, fire system upgrade for annex) will be held and reviewed in the future.

Review /Approve Pioneer Valley Planning Commission Planning Assistance MOU

The board reviewed a draft MOU for planning assistance, proposed by the PVPC.

After review and discussion, it was MOVED by Dempsey, SECONDED by Bronstein

To approve the MOU as presented, and to authorize the chair to sign on behalf of the board.

VOTED: 3, 0, 0. (7:59 PM)

Mr. Finn noted that he would be reviewing past documents relative to energy surveys and would provide that information to the PVPC.

Department Reports (if any)

Highway

Mr. Jablonski noted recent activity of the Department.

- CE class for hydraulic operators certs.
- Patching roads;
- Assist Huntington with structure fire
- Brush chipping, etc.
- All roads have been swept; lines are painted.
- HRMC compost bins received and sent to other member towns.
- Springs replaced on front end of one truck
- Flags for holidays; etc.
- Dust control, etc.

Old Business

No old business was raised.

New Business / Member Concerns

Naloxboxes

There was discussion about a proposal to place a Naloxbox in Town Buildings. The board determined to get an opinion from the police and fire departments, and to continue discussion.

Administrative

Appointment: Cultural Council

The board took up a request from Jessica Lerman to be appointed to the cultural council. After brief discussion, it was MOVED by Johndrow, SECONDED by Bronstein

To appoint Jessica Lerman to the Westhampton Cultural Council, appointment effective June 5, 2023.

VOTED: 3, 0, 0.

Appointment: Treasurer, Assistant Treasurer-Collector

After discussion, it was determined to authorize Ms. Bronstein to negotiate salary and other terms with Mr. Mailloux, and to report back to the board at the next scheduled meeting. Given the time-sensitive nature of the matter, a meeting will be posted for June 8, 2023, at a time convenient to the board.

Administrative Update (Finn)(if any)

IT Contract

Mr. Finn noted that Northeast IT had offered an alternative contract, which reflected a substantial reduction to their earlier proposal. Based on the details of that contract, and the level of service, Mr. Finn recommended that the Selectboard approve renewal of the contract for Managed IT Services with Northeast IT.

After discussion, it was MOVED by Johndrow, SECONDED by Bronstein

To approve the contract for managed IT services with Northeast IT, and to authorize Ms. Dempsey to sign on behalf of the Town.

VOTED: 3, 0, 0.

Cable Franchise Agreement

Mr. Finn noted that he would be meeting with Ms Eileen Leahy, Comcast, to discuss the terms of the renewal of the Cable Franchise Agreement. Mr. Finn noted that he would be pressing Comcast to support full extension of the cable plant along upper Tob Hill Road, in order to serve the four unconnected residents on that road. Mr. Finn suggested that all four property owners might be requested to agree in writing to subscribe to cable television and internet service for a term of no less than two years, as a gesture of good faith to Comcast. Mr. Finn also noted that he would be pressing Comcast to offer low- or no-cost internet service to Municipal Buildings (Town Hall, Annex, Public Library, Public Safety Building, and Highway Garage) for the duration of the contract.

Audit:

Mr. Finn noted that Tom Scanlon's team had completed the 'field work' for the FY22 audit, and that we would expect a final 'management letter' to be submitted in the near future.

Procurement Officer

Mr. Finn requested that the board consider appointing him as the "Chief Procurement Officer" for the town. Mr. Finn noted that the CPO oversees all bidding and purchasing, to ensure that they are in compliance with the laws of the Commonwealth. The CPO oversees supplies, services, and transactions relating to acquisition of or disposition of real property by the City pursuant to M.G.L. Chapter 30B (known as the Uniform Procurement Act); "horizontal public works" (non-building) construction projects; "vertical public building construction projects", pursuant to M.G.L. Chapter 149, § 44A (et. seq.); and requests for qualifications for designer services pursuant to M.G.L. Chapter 7C, §§ 44-57 (et. seq.). Mr. Finn noted also that the CPO coordinates insurance coverage for property and casualty insurance, automobile liability, excess/umbrella liability, school board liability, public officials liability, and law enforcement liability, in order to maintain comprehensive and cost-effective coverage.

Mr. Finn noted that he would seek out certification under the MCPPO program, which is overseen by the Mass Inspector General. Classes for certification will be held in the fall.

After further deliberation, it was MOVED by Johndrow, SECONDED by Bronstein

To appoint Mr. Finn as the Chief Procurement Officer for the Town of Westhampton.

VOTED: 3, 0, 0 (8:44 PM)

Review Correspondence

Mr. Finn noted no new correspondence.

Review and Sign: Payroll and A/P Warrants: W23-25, WP23-25

After review, it was MOVED by Johndrow, SECONDED by Bronstein

To approve the Payroll and A/P Warrants as presented, and to sign.

VOTED: 3, 0, 0 (8:47 PM)

Review and Sign: Minutes

May 22, 2023

After review, it was MOVED by Johndrow, SECONDED by Dempsey

To approve the minutes of May 22, 2023, as presented.

VOTED: 2, 0, 1. (BRONSTEIN) (8:49 PM)

Set date for next meetings

Tuesday, June 20, 2023 – Regular Meeting

(June 19 is "Juneteenth", a Massachusetts Holiday)

Adjourn

It was MOVED by Bronstein, SECONDED by Johndrow

To Adjourn.

VOTED: 3, 0, 0. (9:00 PM)

The Board stood adjourned at 8:52 PM.

Respectfully submitted,

Approved by a vote of the Selectboard at a regular meeting, held on June 20, 2023.

Phil Dowling

Maureen Dempsey

Scott Johndrow